

(2) If the approving authority is not satisfied, it shall reject the application and shall inform the applicant of the reasons for such rejection and of the conditions which shall be satisfied before approval could be granted.

160H. Application after rejection. - If within a period of six months from the rejection of an application for approval, the applicant informs the approving authority that the conditions laid down have been satisfied and deposits inspection fee of two thousand rupees, the approving authority may, if, after causing a further inspection to be made and after being satisfied that the conditions for grant of approval have been complied with, grant the approval in Form 48.

160-I. Renewal. - On an application being made for renewal, the approving authority shall, after causing an inspection to be made and if satisfied that the conditions of the approval and the rules made under the Act have been complied with, shall issue a certificate of renewal in Form 49.

160J. Withdrawal and suspension of approvals. - (1) The approving authority may, after giving the approved laboratory an opportunity to show cause why such an order should not be passed, by an order in writing stating the reasons therefor, withdraw an approval granted under this Part or suspend it for such period as it thinks fit either wholly or in respect of testing of some of the categories of Ayurvedic, Siddha and Unani drugs to which it relates, if in his opinion the approved laboratory had failed to comply with any of the conditions of the approval or with any provision of the Act or the rules made thereunder.

(2) Any approved laboratory, whose approval has been suspended or withdrawn, may, within three months of the date of the order of suspension or withdrawal, appeal to the State Government which shall dispose of the appeal in consultation with a panel of competent persons appointed by the Department of Indian Systems of Medicine & Homoeopathy, Government of India in this behalf and notified in the Official Gazette.]

¹[PART XVII

²[LABELLING, PACKING AND LIMIT OF ALCOHOL IN] AYURVEDIC (INCLUDING SIDDHA) OR UNANI DRUGS

161. ²[Labelling, packing and limit of alcohol.]—(1) There shall be conspicuously displayed on the label of the container or package of an Ayurvedic (including Siddha) or Unani drug, the true list of all the ingredients ³[with the botanical names of plant based ingredients along with plant part(s) and form of ingredients, in which, these are] used in the manufacture of the preparation together with quantity of each of the ingredients incorporated therein and a reference to the method of preparation thereof as detailed in the standard text and Adikarana, as are prescribed in the authoritative books specified in the First Schedule to the Act ³[and in respect of Patent or Proprietary Ayurveda, Siddha or Unani drugs, the true list of all ingredients with the botanical names of plant based ingredients along with part(s) and form of ingredients, in which, these are used in the formulation, with their quantity]:

Provided that if the list of ingredients contained in the medicine is large and cannot be accommodated on the label, the same may be printed separately and enclosed with packing and reference be made to this effect on the label.

(2) The container of a medicine for internal use made up ready for the treatment of human ailments shall, if it is made up from a substance specified in Schedule E (1), be labelled conspicuously with the words 'Caution: To be taken under medical supervision' both in English and Hindi language.

1. Ins. by notification F.1-23/6, dt. 2.2.1970.

2. Subs. by G.S.R. 904(E), dt. 2.11.1992.

3. Ins. by G.S.R. 844(E), dt. 26.11.2012

(3) Subject to the other provisions of these rules, the following particulars shall be either printed or written in indelible ink and shall appear in a conspicuous manner on the label of the innermost container of any Ayurvedic (including Siddha) or Unani drug ²[Patent or Proprietary Ayurveda, Siddha or Unani drugs] and on any other covering in which the container is packed', namely—

(i) The name of the drug. ³[For Ayurveda, Siddha or Unani drugs] this purpose the name shall be the same as mentioned in the authoritative books included in the First Schedule of the Act.

(ii) A correct statement of the net content in terms of weight, measure or number as the case may be. The weight and volume shall be expressed in metric system.

(iii) The name and address of the manufacturer.

(iv) The number of the licence under which the drug is manufactured, the figure representing the manufacturing licence number being preceded by the words 'Manufacturing Licence Number' or 'Mfg. Lic. No.' or 'M.L.'.

(v) A distinctive batch number, that is to say, the number by reference to which details of manufacture of the particular batch from which the substance in the container is taken are recorded and are available for inspection, the figure representing the batch number being preceded by the words "Batch No." or "Batch" or "Lot Number" or "Lot No." or "Lot" or any distinguishing prefix.

(vi) The date of manufacture. For this purpose the date of manufacture shall be the date of completion of the final products, or the date of bottling or packing for issue.

(vii) The words "Ayurvedic medicine" or "Siddha medicine" or "Unani medicine" as the case may be.

(viii) The words "FOR EXTERNAL USE ONLY" if the medicine is for external application.

(ix) Every drug intended for distribution to the medical profession, as a free sample shall, while complying with the labelling provisions under clauses (i) to (viii), further bear on the label of the container the words "Physicians sample. Not to be sold" which shall be over-printed.

¹[(x)(a) Preparation (Asavas) with high content of alcohol as base

Name of the drug	Maximum size of packing
(i) Karpur Asava	15 ml
(ii) Ahiphenasava	15 ml
(iii) Margamadasava	15 ml

(ix)(b) Preparations containing self-generated alcohol

Name of the drug	Maximum content of alcohol (Ethyl alcohol v/v)	Maximum size of packing
(i) Mritsanjivani Sura	16 per cent	30 ml.
(ii) Mahadrakshasava	16 per cent	120 ml.]

1. Subs. by G.S.R. 904 (E), dt. 2-11-1992.

2. Ins. by G.S.R. 844(E), dt. 26.11.2012.

3. Subs. by G.S.R. 844(E), dt. 26.11.2012.

(4) Nothing in these rules shall be deemed to require the labelling of any transparent cover or of any wrapper case or other covering used solely for the purpose of packing, transport or delivery.

¹[**161A. Exemption in labeling and packing, provisions for export of Ayurvedic (including Siddha) and Unani drugs.**- (1) Labels and packages or containers of Ayurvedic, Siddha and Unani drugs for export may be adopted to meet the specific requirements of the law of the country to which the said drug is to be exported, but the following particulars shall appear in conspicuous position on the container in which drug is packed and on every other covering in which that container is packed, namely :

- (a) Name of the Ayurvedic, Siddha and Unani drug (Single or compound formulations;
- (b) the name, address of the manufacturer and the number of licence under which the drug has been manufactured;
- (c) batch or lot number;
- (d) date of manufacture, along with the date for “Best for use before”;
- (e) main ingredients, if required by the importing country;
- (f) for export:

Provided that where Ayurvedic, Siddha and Unani Single or compound drug not classified under the First Schedule or Schedule E-(I), is required by the consignee to be not labeled with the name and address of the manufacturer, the labels on packages or containers shall bear a code number as approved by the Licensing Authority mentioned in rule 152.

(2) the provisions of Rule 161 shall not apply to a medicine made up “ready for treatment”, whether after, or without, alteration, which is supplied on the prescription of a registered medical practitioner if the medicine is labeled with the following particulars, namely:—

- (a) the name and address of the suppliers;
- (b) the words “For External Use Only”, if the medicine is for external application.]

²[**161B.** 1. The date of expiry of Ayurveda, Siddha and Unani medicines shall be conspicuously displayed on the label of container or package of an Ayurvedic, Siddhas and Unani medicines, and after the said date of expiry, these medicines shall not be in circulation.

2. The Shelf-life i.e. for Ayurveda, Siddha and Unani medicines shall be as follows:-

(i) Shelf life or date of expiry for Ayurvedic medicines.

Sl. No.	Name of the Group of Ayurvedic Medicine	Shelf life and date of expiry with effect from the date of manufacture
1.	Churna, Kwatha Churna	2 years
2.	Gutika (Vati-Gutti, Pills, Tablets except Gutika with Rasa)	3 years
3.	(i) Gutika Tablet containing Kasth aushadhi (ii) Gutika, Tablet containing Kasth aushadi and Rasa, Uprasa, Metallic Bhasmas, and Guggulu.	3 years 5 years
4.	Rasaushadhies	No expiry date ¹
5.	Asava Arista	No expiry date ¹
6.	Avaleha	3 years
7.	Guggulu	5 years
8.	Mandura - Lauha	10 years

1. Ins. by G.S.R. 787 (E), dt. 17-10-2000.

2. Ins. by G.S.R. 764 (E), dt. 15-10-2009.

9.	Ghrita	2 years
10.	Taila	3 years
11.	Arka	1 year
12.	Dravaka, Lavana, Ksara	5 years
13.	Lepa Churna	3 years
14.	Dant Manjan Powder	2 years
15.	Dant Manjan Paste	2 years
16.	Lepa Gutti	3 years
17.	Lepa Malahar (Ointment)/Liniment/Gels/ lotions /creams	3 years
18.	Varti	2 years (one time use)
19.	Ghana Vati	3 years
20.	Kupipakva Rasayan	No expiry date ¹
21.	Parpati	No expiry date ¹
22.	Sveta parpati	2 years
23.	Pisti and Bhasma	No expiry date ¹
24.	Svarna, Rajata, Lauha, Mandura, Abhraka bhasma, Godanti, Shankha Bhasma, etc.	No expiry date ¹
25.	Naga Bhasma, Vanga Bhasma, Tamra Bhasma ²	5 years ²
26.	Capsules made of soft gelatin (depending upon the content material) for Kashtha aushadhi	3 years
27.	Capsules of hard gelatin (depending upon the content material) -containing Kashtha aushadhi with Rasa, Bhasma, Parad-Gandhak	5 years ²
28.	Syrup/liquid oral	3 years
29.	(Kama/Nasa Bindu) Ear/Nasal drops Eye drops	2 years 1 year
30.	Khand/Granule/Pak	3 years
31.	Dhoopans-Inhalers	2 years
32.	Pravahi Kwatha (with preservatives)	3 years

Note 1. Item at Sr. No. 4, 5, 19, 20, 22, 23 have very long shelf life and they become more efficacious with the passage of time and period of ten years shall be mandatory for keeping the records of such items.

Note 2. Bhasmas at Sr. No. 23, start solidifying after five years and they need one or two 'Puti' again before using in the dosage form.

(ii) Shelf life or date of expiry for Siddha Medicines

Sl. No.	Name of the Group of Medicine	Shelf life and date of expiry with effect from the date of manufacture
1.	Karpam	No expiry date*
2.	Cunnam	5 years
3.	Kalanku	No expiry date*
4.	Kattu	No expiry date*
5.	Parpam	No expiry date*
6.	Centuram	No expiry date*
7.	Karuppu	No expiry date*
8.	Patankam	5 years
9.	Kulampu	5 years
10.	Meluku	5 years
11.	Tinir	2 years
12.	Tiravakam	2 years
13.	Mattirai	3 years

Drugs and Cosmetics Rules 1945

14.	Tailam	3 years
15.	Ilakam	3 years
16.	Iracayanaam	3 years
17.	Ney	2 years
18.	Manappaku	3 years
19.	Venney	3 years
20.	Vatakam	3 years
21.	Curanam	2 years
22.	Pura Maruntukal	5 years

Note. * Items at Sr. No.1, 3, 4, 5, 6, 22 have very long shelf life and they became more efficacious with the passage of time and period of ten years shall be mandatory for keeping the records of such items.

(iii) Shelf life or date of expiry for Unani System of Medicines

Sl. No.	Name of the Group of Medicine	Shelf life and date of expiry with effect from the date of manufacture
1.	Habb (Pills)	3 years
2.	Qurs (Tablets)	3 years
3.	Majoon/Dawa	3 years
4.	Khamira	3 years
5.	Itrifal	3 years
6.	Tiryaq	3 years
7.	Laoq	2 years
8.	Laboob	2 years
9.	Halwa	2 years
10.	Mufarreh/Yaqooti	2 years
11.	Burood/Surma/Kohal	3 years
12.	Kushta	5 years
13.	Raughaniyat	3 years
14.	Marham/Zimad/Qairooti	3 years
15.	Ayarij/Sufoof	2 years
16.	Safoof (Namak wala/containing salt)	1 year
17.	Sharbat/Sikanjabeen	3 years
18.	Jawarish	3 years
19.	Capsule	3 years
20.	Arq	1 year
21.	Qutoor	1 year
22.	Nabeez	5 years
23.	Murabba	1 year
24.	Tila	2 years]

¹[PART XVIII

**GOVERNMENT ANALYSTS AND INSPECTORS
FOR AYURVEDIC (INCLUDING SIDDHA) OR UNANI DRUGS**

162. Duties of Inspectors specially authorised to inspect the manufacture of Ayurvedic (including Siddha) or Unani drugs—Subject to the instructions of the controlling authority, it shall be the duty of an Inspector authorised to inspect the manufacture of Ayurvedic (including Siddha) or Unani drugs—

1. Ins. by notification F.1-23/6, dt. 2-2-1970.

(i) to inspect not less than twice a year, all premises licensed for manufacture of Ayurvedic (including Siddha) or Unani drugs within the area allotted to him and to satisfy himself that the conditions of the licence and the provisions of the Act and the rules made thereunder are being observed;

(ii) to send forthwith to the controlling authority after each inspection a detailed report indicating whether or not the conditions of the licence and the provisions of the Act and the rules made thereunder are being observed;

(iii) to take samples of the drugs manufactured on the premises and send them for test or analysis in accordance with these rules;

(iv) to institute prosecutions in respect of violation of the Act and the Rules made thereunder.

¹[162A. **Qualifications of the State Drug Licensing Authority for Licensing of Ayurveda, Siddha and Unani drugs**—(a) The Ayurvedic/ Siddha/ Unani qualifications as per Schedule II of the Indian Medicine Central Council Act, 1970 (84 of 1970)/ B Pharma (Ayurveda) of a recognized University.

(b) At least 5 years experience in the Ayurveda/ Siddha/ Unani drug manufacturing or testing of Ayurvedic, Siddha and Unani drugs or enforcement of provisions of Chapter IVA of the Drugs and Cosmetics Act, 1940 and Rules made thereunder or teaching/ research on clinical practice of Ayurveda/ Siddha/ Unani System.]

163. Procedure for despatch of sample to Government Analyst and its receipt by the Government Analyst—(1) Sample for test or analysis shall be sent to the Government Analyst by registered post or by hand in a sealed package, enclosed together with a memorandum in Form 18-A in an outer cover addressed to the Government Analyst.

(2) The package as well as the outer cover shall be marked with a distinguishing number.

(3) A copy of the memorandum and a specimen impression of the seal used to seal the package shall be sent by registered post or by hand to the Government Analyst.

(4) On receipt of the package from an Inspector, the Government Analyst or an Officer authorised by him in writing in this behalf shall open the package and shall also record the conditions of the seals on the package.

(5) After the test or analysis has been completed, one copy of the results of the test or analysis shall be supplied forthwith to the sender in Form 13-A. A copy of the result in Form 13A shall also be sent simultaneously to the Controlling Authority and to the Drugs Controller, India.

²[**PHARMACOPOEIAL LABORATORY FOR INDIAN MEDICINES TO FUNCTION AS CENTRAL DRUGS LABORATORY FOR THE PURPOSE OF TESTING OR ANALYSIS OF AYURVEDA, SIDDHA AND UNANI DRUGS**

163.A Functions - The Pharmacopoeial Laboratory for Indian Medicine at Ghaziabad shall function as a Central Drugs Laboratory for the purpose of testing or analysis of Ayurveda, Siddha and Unani Drugs.

Its functions shall be:-

(1) to develop Pharmacopoeial standards and draft monographs and amendments alongwith standardized methods for the Ayurvedic, Siddha, Unani drugs;

(2) to act as Central Appellate Drug Laboratory for testing of Ayurveda, Siddha and Unani drugs,

(3) to analyse or test such samples of Ayurvedic, Siddha, Unani drugs as may be sent to it under sub-section (2) of section 11, or under sub-section (4) or section 25, of the Act;

(4) to maintain reference museum and herbarium for the drugs used in Ayurveda, Siddha and Unani (ASU) system.

(5) to run a training centre for quality control methods in the Ayurveda, Siddha or Unani systems of medicines;

(6) to carry out such other duties as may be entrusted to it by the Government of India.

1. Ins. by G.S.R. 76 (E), dt. 3.2.2003.

2. Ins. by G.S.R. 352 (E), dt. 1.6.2006.

163B. The functions of the Central Drug Laboratory in respect of Ayurvedic, Siddha and Unani drugs shall be carried out at the Pharmacopoeial Laboratory for Ayurvedic, Siddha and Unani medicine, Ghaziabad, (Uttar Pradesh) and the functions of the Director in respect of the said drugs shall be exercised by the Director of the said laboratory.

163C. Despatch of samples for test or analysis - (1) Samples for testing or analysis of Ayurveda, Siddha and Unani drugs under Sub-section (2) of Section 11 or sub-section (1) of section 25 and section 33-H of the Act shall be sent by registered post in a sealed packet, enclosed with a memorandum in Form 1 A, specified in Schedule A, in an outer cover addressed to the Director, Pharmacopoeial Laboratory for Indian Medicine.

(2) The packet as well as the outer cover, shall be marked with a distinguished number.

(3) A copy of the memorandum in Form 1A and a specimen impression of the seal used to seal the packet shall be sent separately by registered post to the Director, Pharmacopoeial Laboratory for Indian Medicine.

163D. Recording of condition of seals - On receipt of the packet, it shall be opened by an officer authorized in writing on that behalf by the Director, Pharmacopoeial laboratory for Indian Medicine, who shall record the condition of the seal on the packet.

163E. Report of result of test or analysis - After test or analysis, the result of the test or analysis, together with full protocols of the tests applied, shall be supplied forthwith to the sender in Form 2A of as specified in the said schedule.

163F. Fees - The fees for test and analysis shall be as specified in Schedule B-1

163G. Signature on certificates - Certificates issued under these rules by the Pharmacopoeial Laboratory for Indian Medicine, shall be signed by the Director or by an officer authorized by the Central Government to sign such certificates.

164. Method of test or analysis to be employed in relation to Ayurvedic (including Siddha) or Unani drugs.—The method of test or analysis to be employed in relation to an Ayurvedic (including Siddha) or Unani drug shall be such as may be specified in the Ayurvedic (including Siddha) or Unani Pharmacopoeia, or if no such pharmacopoeias are available or if no tests are specified in such pharmacopoeias, such tests as the Government Analyst may employ, such tests being scientifically established to determine whether the drug contains the ingredients as stated on the label.

165. Qualifications of Government Analyst. —A person who is appointed a Government Analyst under section 33 F of the Act shall be a person possessing the qualifications prescribed in rule 44 or a degree in Ayurveda, Siddha or Unani System, as the case may be, conferred by a University, a State Government or Statutory Faculties, Councils and Boards of Indian Systems of Medicine recognized by the Central or State Government, as the case may be, for this purpose and has had not less than three years' post graduate experience in the analysis of drugs in a laboratory under the control of (i) a Government Analyst appointed under the Act, or (ii) a Chemical Examiner to Government, or (iii) the Head of an institution specially approved for the purpose by the appointing authority.

166. Duties of Government Analyst—(1) The Government Analyst shall analyze or test or cause to be analyzed or tested such samples of Ayurvedic (including Siddha) or Unani drugs as may be sent to him by Inspectors or any other persons or authority authorised by the Central Government or State Government under the provisions of Chapter IV A of the Act and shall furnish reports of the results of test or analysis in accordance with these rules.

(2) A Government Analyst appointed under section 33F shall from time to time forward to the Government reports giving the result of analytical work and research with a view to their publications at the discretion of the Government.]

¹[**167. Qualifications of Inspector.**—A person who is appointed an Inspector under section 33G shall be a person who—

(a) has the qualifications laid down under rule 49 and shall have undergone practical training in the manufacture of Ayurvedic (including Siddha) or Unani drug, as the case may be; or

(b) has a degree in Ayurvedic or Siddha or Unani System or a degree in Ayurveda Pharmacy, as the case may be, conferred by a University or State Government or a Statutory Faculty, Council or Board of Indian Systems of Medicine recognized by the Central Government or the State Government for this purpose; or

(c) has a diploma in Ayurveda, Siddha or Unani Systems, as the case may be, granted by a State Government or an Institution recognized by the Central Government or a State Government for this purpose.

²[PART XIX

STANDARDS OF AYURVEDIC, SIDDHA AND UNANI DRUGS

168. *Standards to be complied with in manufacture for sale or for distribution of Ayurvedic, Siddha and Unani Drugs.-*

Class of Drugs	Standards to be complied with
1. ³ [* * *] drugs included in Ayurvedic Pharmacopoeia.	The standards for identity, purity and strength as given in the editions of Ayurvedic Pharmacopoeia of India for the time being in force.
2. Asavas and Arishtas	The upper limit of alcohol as self generated alcohol should not exceed 12% v/v excepting those that are otherwise notified by the Central Government from time to time.]

1. Amended by G.S.R. 376 (E), dt. 20.7.1978.

2. Ins. by G.S.R. 519(E), dt. 26.6.1995.

3. The word "Single" omitted by G.S.R. 422(E), dt. 11.6.2002.

¹[169. Permitted Excipients.- Permitted Excipients along with their standards i.e. additives, preservatives, antioxidants, flavouring agents, chelating agents etc. permitted in the Indian Pharmacopoeia (IP), Prevention of Food Adulteration Act, 1954 and Bureau of Indian Standard Act, 1986 are permitted for use in Ayurveda, Siddha and Unani drugs with the following conditions, namely:-

1. The above excipients shall be used in the permissible limits as prescribed in the Indian Pharmacopoeia/ Prevention of Food Adulteration Act, 1954/ Food Product Order/ Bureau of Indian Standard Act, 1986 and they shall comply with the respective quality specifications, not exceeding any specified limits of usage therein, and except Hydrogenated vegetable oil.
2. Only Natural coloring agents as permitted under rule 26 of Prevention of Food Adulteration Rules, 1955 will be used for Ayurveda, Siddha and Unani drugs and additionally, colors permitted under Rule 127 of the Drugs and Cosmetics Rules, 1945 shall be used for Proprietary Ayurveda, Siddha and Unani drugs as defined in subclause (i) of clause (h) of section 3 of Drugs and Cosmetics Act, 1940, not exceeding any specified limits of usage therein.
3. Preservatives and Coloring agents shall be mentioned on the label for the information of the consumer as required under rule 161 of the Drugs and Cosmetics Rules, 1945.
4. Additives used in various processes and in formulating dosage forms shall be mentioned clearly with quantities used, in the application for licenses and the record for the same shall be maintained by the manufacturers.
5. Manufacturers shall be responsible to ensure rationality, safety and quantity used of various excipients in the formulation.
6. If any excipients or additive or preservative etc. referred in Indian Pharmacopoeia/ Prevention of Food Adulteration Act, 1954/ Food Product Order/ Bureau of Indian Standard Act, 1986 is deleted at a particular point of time, this will also be deleted simultaneously for the use in Ayurveda, Siddha and Unani drugs.
7. Following artificial sweeteners as per maximum limit indicated below may be used in various dosage forms of Ayurveda, Siddha, Unani Proprietary Medicines:-

Artificial sweeteners may be used only in proprietary ASU products and the label of such products should carry a statutory warning stating the name and quantity of the artificial sweetener used.

The recommended Acceptable Daily Intake (ADI) of these sweeteners as laid down by US FDA is as follows:

Sr. No.	Sucralose	Aspartame	Saccharin	Acesulfame K
1	5 mg/kg body weight	40 mg/kg body weight	5 mg/kg body weight	15 mg/kg body weight

One third of the above ADI would be permissible for use in Ayurveda, Siddha, Unani Patent and Proprietary Drugs.

8. Any previous notification issued by the Department of AYUSH regarding use of excipients / additives or preservatives in Ayurveda, Siddha and Unani medicines stands superseded.]

1. Subs. by G.S.R. 755 (E), dt. 23.10.2008. Earlier ins. by G.S.R. 285 (E), dt. 11.5.2005.